TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 15, 2026
Time: 2:00 PM

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1	Tarakji v. Secure One Capital Corp.	Cont. to 9/28.
2	Schutzman v. Stern	The application of attorney Sarah Benowich to appear pro hac vice as counsel for Defendants Oren Stern and Amit Louzon in this matter is hereby **GRANTED** pursuant to California Rules of Court, rule 9.40. Defendants Oren Stern and Amit Louzon shall give notice.
3	Mercedes-Benz Vehicle Trust v. Zamorano	Defendant Yanira Zamorano's unopposed motion to compel arbitration is **GRANTED.** Defendant met her burden to show a written arbitration agreement exists that covers plaintiff's claims in this action. (Code Civ. Proc., § 1281.2; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; see Compl., Ex. A.) Plaintiff does not dispute the existence or enforceability of the arbitration agreement. (ROA 20.) This action is stayed pending completion of arbitration. (See Code Civ. Proc., § 1281.4.)

		The Case Management Conference scheduled for July 10, 2026 is **VACATED**. An Status Conference re Arbitration is scheduled for June 11, 2027, at 9:30 a.m. Defendant shall give notice of this ruling.
4	The Irvine Company LLC v. Taquiero Taco, LLC	Plaintiff The Irvine Company LLC's unopposed motion for leave to file the Second Amended Complaint is **GRANTED**. The motion complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (Code of Civ. Proc. § 473, subd. (a)(1); *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [applying "a policy of great liberality in permitting amendments"]; see also Declaration of Ernie Zachary Park ¶¶ 4-7.) The Court deems the filing of the Second Amended Complaint on March 17, 2026 to be proper. (ROA 141.) Plaintiff shall serve the SAC in accordance with Code of Civil Procedure section 415.10 et. seq. Counsel for Plaintiff shall give notice.
5	Cammack v. General Motors LLC	Before the Court is the Motion For Compliance Pursuant to C.C.P. § 871.26, filed on 3/23/26 by Defendant General Motors LLC ("GM"). Plaintiff Chad Cammack ("Plaintiff") asserts that he has now complied with the disclosure requirements at issue, which GM does not dispute on reply. The Motion therefore appears to be **MOOT**, except as to the issue of sanctions. Sanctions are clearly warranted here under C.C.P. § 871.26(j). Although Plaintiff asserts that there was some early uncertainty as to the application of §871.26 due to the opt-in provision that became effective on 4/1/25, there was no valid basis for uncertainty by the time GM filed its responsive pleading on 7/11/25. Plaintiff thus had 60 days from 7/11/25 to comply with C.C.P. § 871.26(f) and (g). Plaintiff failed to do so. (Lasater Decl., ¶ 6; Perks Decl. ¶ 7, Ex. 1.) Sanctions in the amount of $1,500 are therefore imposed under C.C.P. § 871.26(j), on Strategic Legal Practices, APC, to be paid to GM, through its counsel of record, within 15 days. GM is to give notice of this ruling.
6	Johnson v. Hyundai Motor America	The Motion to Compel Binding Arbitration, filed on 3/16/26 by Defendant Hyundai Motor America (HMA) is **DENIED**. HMA has failed to show that the parties entered into a valid agreement to arbitrate here. HMA asserts that Plaintiff Alyssa Johnson (Plaintiff) agreed to arbitrate because HMA included an arbitration provision in its "Owner's Handbook & Warranty Information" (Warranty) for the vehicle. (Ameripour Decl., ¶ 4 and Ex. 2.) But HMA has not shown that the Warranty reflects an actual agreement with Plaintiff: HMA does not present any

		evidence to show that Plaintiff signed or accepted or saw or was informed of the arbitration provision in the Warranty. In contrast, Plaintiff specifically attests that she did not see the arbitration agreement or even know of it when she bought the vehicle. (Johnson Decl., ¶¶ 2-14.) HMA argues that equitable estoppel applies, as Plaintiff's claims rely on the Warranty. But an essential element of any contract is mutual assent. (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270.) A warranty is not a traditional contract: it is effectively a unilateral promise to the consumer. (*Gavaldon v. DaimlerChrysler Corp*. (2004) 32 Cal.4th 1246, 1258; *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830.) Equitable estoppel thus cannot apply in this context. Nor are Plaintiff's claims clearly dependent upon the Warranty. (See *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1133 [warranty claims arise from a statutory scheme; unless properly disclaimed, every retail sale of consumer goods includes the implied warranty that the goods are merchantable], in addition to any express warranty provided by the manufacturer.) HMA has thus failed to show that equitable estoppel applies here. As HMA has failed to establish that an enforceable arbitration agreement exists between HMA and Plaintiff, the Motion is **DENIED**. HMA's Request for Judicial Notice is **GRANTED** under Ev. Code §452(d), as to the existence of the record. Counsel for HMA is to give notice of this ruling.
7	Providence Capital Funding, Inc.	Before the Court is a motion for attorney fees filed by plaintiff Providence Capital Funding, Inc. against defendants Rona Health, LLC (Rona), Pietz Enterprises, LLC (Pietz Enterprises), and Robert Pietz (Pietz)(collectively, Defendants) For the reasons set forth below, the motion is **GRANTED** in the reduced amount of $40,503. Contractual attorney's fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code § 1717, subd. (a),(b).) With judgment entered in favor of Plaintiff and against Defendants,, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision in the parties contracts. (Declaration of Adeline Tungate, Exs. 1, 2; ROA 185.) The question becomes whether the amount of attorney fees sought by Plaintiff at $53,206.06 is reasonable. Generally, courts employ the lodestar method to determine if attorney's fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney's fees is not entitled to all hours

they claim in an attorney fee request and must prove that the hours sought are reasonable and necessary. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Hourly Rate: A "reasonable" hourly rate used to calculate the lodestar is the prevailing rate for similar work in the community where the court is located. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 695-696.) The court may consider various factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (*Flannery v. California Highway Patrol* (1998) 61 CA4th 629, 632.) The court may also rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 437.)

Here, Plaintiff seeks hourly rates ranging from $345 to $395 for attorney Adeline Tungate (Tungate) and $645 for attorney Mark Scott (Scott). (Tungate Decl. ¶ 6, Ex. 3.) Based on the court's experience, the requested hourly rate for Tungate is reasonable for the work performed in the Orange County community based on her skill level and experience. As for Scott, the requested hourly rate is excessive considering the nature of the work performed, e.g., responding to written discovery, preparing pleadings and briefs related to simple motions that do not require extraordinary skill. The Court therefore reduces Scott's hourly rate to $525.

Hours Expended: "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005)132 Cal.App.4th 359, 396.) The court has discretion to reduce the hours it determines were excessive or not supported. (*Levy v. Toyota Motor Sales, U.S.A., Inc*. (1992) 4 Cal.App.4th 807, 816; *Christian Research Institute v. Ahor* (2008) 165 Cal.App.4th 1315, 1326-29.)

Here, Plaintiff seeks $53,206.06 in fees incurred through February 2026. (Tungate Decl. ¶ 18.) The billing statements submitted by Plaintiff, however, total $52,432 through December 2025. (*Id.*, Ex. 3.) There is no mention in counsel's declaration of what fees were incurred from December 2025 to February 2026, or any explanation of the discrepancy.

The Court otherwise finds the amount of time spent on each task is generally commensurate with the task. The only unreasonable time spent are the hours incurred preparing Plaintiff's meritless motion for sanctions [5.1 hours (Scott) and 2.7 hrs (Tungate)]. The Court approves 63 hours spent by Scott and 20.4 hours by Tungate.

		Thus, the Court **GRANTS** the motion and awards the total amount of $40,503, broken down as follows: $525 x 63 (Scott) plus $345 x 12.6 (Tungate) plus $395 x 7.8 (Tungate). Counsel for Plaintiff shall provide notice of this ruling.
8	Jackson v. Phancao, et. al.	Before the Court is a motion by Plaintiff Chapter Kris Jackson to compel Defendant Patrick Phancao to participate in binding arbitration of plaintiff's complaint. The motion is **DENIED**, as set forth herein. Both the Federal Arbitration Act and the California Arbitration Act require the existence of a valid Arbitration Agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and Code Civ. Proc. §1281.2). "The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Engalla v. Permanente Medical Group, Inc*. (1997) 15 Cal.4th 951, 972; See also *Green Tree Financial Corp.-Alabama v. Randolph* (2000) 531 U.S. 79, 91-92). Here plaintiff has failed to establish the existence of an arbitration agreement between Jackson and Phancao. There is no evidence submitted along with the motion demonstrating the existence of an arbitration agreement. "Evidence received at a law and motion hearing must be by declaration or request for judicial notice without testimony or cross-examination, unless the court orders otherwise for good cause shown." (Rule 3.1306(a).) Accordingly, the motion is DENIED. In addition, although plaintiff asserts the arbitration provision in the 2025 BMO Handbook is an arbitration agreement between Phancao and Jackson, the 2025 BMO Handbook contains an arbitration agreement between BMO and the account holder. (See page 19 of the 2025 BMO Handbook) Further, while plaintiff claims the arbitration provision in the 2025 BMO Handbook applies to banking transactions in 2015 and 2016 at the Bank of the West, such has not been established. Finally, plaintiff alleges "this is an independent action in equity" to set aside a default and default judgment based on fraud and not a dispute over Bank of the West's handling of any banking transactions. (Complaint ¶14) Accordingly, the motion is **DENIED**. Phancao is ordered to give notice of this ruling.
9	Kennedy v. Maksoud	O/C
10	Castenada v. Doe	Before the Court is an unopposed Motion to be Relieved as Counsel of Record, filed by attorney Mark Ruszecki as to the representation of plaintiff Joseph Castaneda.

		The Court will hear argument from Mr. Ruszecki as to all efforts made to confirm the address of Mr. Castenada, as referenced in Para. 3 of his Declaration. In the event Mr. Ruszecki is able satisfactorily address the efforts made, the court will grant the motion. If counsel does not appear at the hearing, the motion will be denied. In the event the motion is granted, Mr. Ruszecki will be required to submit a new order with all pending dates. The order will become effective upon filing a proof of service of the order on Mr. Castenada. Mr. Ruszecki shall give notice.
11	Arck Services, LLC v. Bekam	Cont. to 8/17.
12	FDC Tech, Inc. v. Intelligenceline.com	The motion by plaintiff FDC Tech, Inc. for an order permitting substituted service of process by electronic mail on defendants pursuant to Code of Civil Procedure §413.30 is **DENIED**, without prejudice. Code of Civil Procedure §413.30(a) states: "If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." Here, the motion is supported by a single declaration of David Gonzalez, an invstigator at Affirm Investigative Solutions, LLC. He states that he did not find any "reliable, actionable contact information identifying the individuals or entities operating or controlling the subject websites." (Gonzalez Decl. ¶5) This declaration falls well short of the required showing of reasonable diligence. Although the declaration refers to the minclaw.com website, it is not explained how this is relevant to this motion. There is no evidence of the attempts made to serve the defendants by each of the methods prescribed by statute. Also, while the motion refers to various efforts to locate the defendants, not only are those arguments significantly lacking in factual detail, attorney argument is not admissible evidence. "Evidence received at a law and motion hearing must be by declaration or request for judicial notice without testimony or cross-examination, unless the court orders otherwise for good cause shown." (Rule 3.1306(a).)

		Finally, there is no evidence as to what email address would be used for substituted service for each of the three defendants or why that email address is appropriate. For the forgoing reasons, the motion is **DENIED**, without prejudice. The Clerk shall give notice.
13	Zou v. Ford Motor Co. et al	Before the Court is the Demurrer filed on 1/5/26 by Defendants Ford Motor Company ("Ford") and David Wilson's Villa Ford of Orange ("Dealer") (together "Defendants"), as to the First Amended Complaint ("FAC") filed by Plaintiff Xing Zou ("Plaintiff") on 12/2/25. The Demurrer as to the First, Second, Third and Fourth Causes of Action (each a "COA"), to the extent based on the time limits in C.C.P. § 871.21, is **OVERRULED**. The Court rejects application of the six-year statute of repose under § 871.21(b). "[A] statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations" (*Niagara Fire Ins. Co. v. Cole* (1965) 235 Cal.App.2d 40, 43.) Thus, "retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statue cuts off his right." (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297–298.) The statute became effective on January 1, 2025, but by then, more than six years had elapsed since Plaintiff's purchase of the vehicle. Plaintiff's rights would thus have been immediately cut off if § 871.21 were applied. However, the Demurrer as to COA 4, based on Comm. Code §2725, is **SUSTAINED** with 15 days leave to amend. The limitations period for breach of the implied warranty of merchantability under the Song–Beverly Consumer Warranty Act is four years. (Comm. Code §2725; *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.) As the vehicle at issue was purchased "on or about February 10, 2018 (FAC ¶ 7), the claim thus appears to be time-barred. Where a pleading shows on its face that a claim would otherwise be time-barred, the burden is on the plaintiff to state specific facts to show delayed discovery: conclusory allegations will not suffice. (*Carrillo v. County of Santa Clara* (2023) 89 Cal.App.5th 227, 234.) Here, Plaintiff has stated only vague and conclusory allegations to support his delayed discovery claim. (See FAC ¶¶ 33, 37, 42-44.) For COA 5, the Demurrer is **OVERRULED**. COA 5 asserts a claim for Negligent Repair against Dealer. Defendants argue that the claim is barred by the economic loss rule ("ELR"). But the ELR does not apply to a claim based on negligent performance of services. (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 777.)

		For COA 6, the Demurrer is **SUSTAINED**, with 15 days leave to amend. The claim as pled appears to be time-barred under C.C.P. § 338(d): the vague assertions in the FAC at ¶ 37 do not suffice to allege delayed discovery. The claim as pled also lacks adequate specificity. The elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) defendant intended to defraud plaintiff by intentionally concealing or suppressing the fact; (4) plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Rattagan v. Uber Technologies, Inc*. (2024) 17 Cal.5th 1, 40.) Every element must be alleged in full, factually and specifically. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) The specificity requirement "provides an important safeguard against the risk of tort recovery for fraud in every case involving conduct occurring during a contractual relationship." (*Rattagan v. Uber Technologies, Inc*., supra, 17 Cal.5th at 43.) Here, Plaintiff has provided only a vague description of the alleged defect(s) in his vehicle (FAC ¶¶ 78-81), without identifying what specifically occurred, when and how the defect(s) was discovered, what specific information was allegedly known to Ford concerning that defect, and when. Generic claims of defects, without more, will not suffice to state the claim, as "[t]he very existence of a warranty presupposes that some defects may occur." (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 345.) Greater specificity is required. However, Defendants' argument under the ELR fail here. *Rattagan* did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (*Rattagan v. Uber Technologies, Inc.,* supra, 17 Cal.5th at 41, fn. 12.) In contrast, *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 does address such claims in this context. After *Rattagan* was decided, review of *Dhital* was dismissed. *Dhital* thus controls here. Under *Dhital*, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) The Demurrer, to the extent s based on the ELR, thus fails. Defendants are to give notice of this ruling.
14	Taxrise, Inc. vs. Vyapay, Inc.	Plaintiff Taxrise, Inc.'s ("Plaintiff") unopposed Motion for Summary Judgment, or in the Alterative, Summary Adjudication ("Motion") is **DENIED**. Plaintiff moves for summary judgment, or alternatively, summary adjudication on each of its five causes of action ("COA") solely against defendant Wain Swapp ("Swapp"). (Civ. Proc. Code § 437c(p)(1) and (f).) **COA No. 1 – Breach of Written Contract**

"To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage. [Citation.] If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal. App. 4th 299, 307.)

Plaintiff argues it entered a contract with defaulted defendant Vyapay, Inc. ("Vyapay"). The contract presented in support of the Motion was between non-party WorldPay as 'Acquirer' and Plaintiff as 'Sub-Merchant'. (Evidence, Ex. A.) VyaPay was noted to be the 'Provider' under the terms of the contract.

The contract indicates it is made "in connection with the agreement between [Plaintiff] and VyaPay. . ." (Evidence, Ex. A ¶ 1.) The contract also states, " Acquirer understands that [Plaintiff] may have contracted with [VyaPay] to obtain certain processing services and that [VyaPay] may have agreed to be responsible to [Plaintiff] for all or part of [Plaintiff's] obligations contained herein." (*Ibid*.) Further, "If appropriately indicated in [Plaintiff's] agreement with [VyaPay], [Plaintiff] may be a limited-acceptance merchant. . ." (Evidence, Ex. A ¶ 3.) Additionally, "The term of this Agreement shall begin, and the terms of the Agreement shall be deemed accepted and binding upon Acquirer, on the date Acquirer accepts this Agreement by issuing a merchant identification number, and shall be coterminous with [Vyapay's] agreement with [Plaintiff]." (Evidence, Ex. A § 4.) Finally, "This Agreement is entered into, governed by, and construed *pursuant to the laws of the State of Ohio* without regard to conflicts of law provisions. This Agreement may not be assigned by Sub-merchant without the prior written consent of Acquirer. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors, transferees and assignees. *This Agreement is for the benefit of, and may be enforced only by, Acquirer and Sub-merchant and is not for the benefit of, and may not be enforced by, any other party*." [Emphasis added.] (Evidence, Ex. A § 6.)

The contract presented was between Plaintiff and WorldPay, Inc., not between Plaintiff and VyaPay or Swapp. The terms of the contract specifically state that the contract is only for the benefit of Plaintiff and WorldPay and not for any other party. While the presented contract alludes to a potential separate contract between Plaintiff adt VyaPay, no such contract was provided. The contract provided is also only signed by Plaintiff and not VyaPay, Swapp, or any other entity. Despite the Motion stating the contract 'mandating' the funds must be released after six months, there is nothing in the contract presented that states that.

As Plaintiff has not shown a viable contract between Plaintiff and Swapp, any terms of any such contract which required something from Swapp, or any breach of said terms. Plaintiff has not met its initial burden of proving each element of the cause of action. (Civ. Proc. Code § 437c(p)(1).)

The Motion is **DENIED** as to this COA.

COA No. 2 – Conversion

"Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages....[Citation omitted.]" (*Lee v. Hanley* (2015) 61 Cal. 4th 1225, 1240 ("Lee").) "But where the money or fund is not identified as a specific thing the action is to be considered as one upon contract or for debt and not for conversion." (*Baxter v. King* (1927) 81 Cal. App. 192, 194.) Finally, "While it is true that money cannot be the subject of an action for conversion unless a specific sum capable of identification is involved [Citation], it is not necessary that each coin or bill be earmarked. When an agent is required to turn over to his principal a definite sum received by him on his principal's account, the remedy of conversion is proper." (*Haigler v. Donnelly* (1941) 18 Cal. 2d 674, 681.)

Plaintiff argues Swapp wrongfully exercised dominion over Plaintiff's property, however Plaintiff has presented no evidence Swapp did that or is personally liable to Plaintiff for the alleged actions of VyaPay. Plaintiff has not identified a specific sum of money that was withheld (or converted) from Plaintiff. While the Complaint states the sum was $167,682.92, it also appears from the allegations in the complaint to state that half that sum had been released back to Plaintiff for the new $300,000 per month contract. (Complaint ¶¶ 10, 18.) The evidence presented in support of the Motion also supports VyaPay released $81,716.50 on 02/17/22 to Plaintiff. (Evidence, Ex. B.) Plaintiff has not presented evidence Swapp has personally exercised dominion over any of Plaintiff's property, nor has Plaintiff identified a specific amount of money.

Plaintiff has not met its initial burden of proving each element of the cause of action. (Civ. Proc. Code § 437c(p)(1).) The Motion is **DENIED** as to this COA.

COA No. 3 – Money Had and Received

""A cause of action for money had and received is stated if it is alleged [that] the defendant 'is indebted to the plaintiff in a certain sum "for money had and received by the defendant for the use of the plaintiff." ' ..." [Citation.] The claim is viable " 'wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter.' " [Citations.] As juries are instructed in CACI No. 370, the plaintiff must prove that the defendant received money "intended to be used for the benefit of [the plaintiff]," that the money was not used for the plaintiff's benefit, and that the defendant has not given the money to the plaintiff." (*Avidor v. Sutter's Place, Inc.* (2013) 212 Cal. App. 4th 1439, 1454.)

Again, Plaintiff has provided no evidence Swapp is personally indebted to Plaintiff, that Swapp personally took or is holding any money that might belong to Plaintiff, and Plaintiff produced no evidence Swapp had anything to do with the allegations in the Complaint. There is no evidence of a contract between the Plaintiff and Swapp and the only evidence produced by Plaintiff regarding Swapp was that Swapp was allegedly cc'd on emails wherein Plaintiff requested funds. (Evidence, Ex. B.) There is no evidence Swapp responded to those emails.

Plaintiff has not met its initial burden of proving each element of the cause of action. (Civ. Proc. Code § 437c(p)(1).)The Motion is **DENIED** as to this COA.

COA No. 4 – Breach of the Implied Covenant of Good Faith and Fair Dealing

"There is no obligation to deal fairly or in good faith absent an existing contract. [Citation.] If there exists a contractual relationship between the parties. . . the implied covenant is limited to assuring compliance with the express terms of the contract, and cannot be extended to create obligations not contemplated in the contract." (*Racine & Laramie, Ltd. v. Dep't of Parks & Recreation* (1992)11 Cal. App. 4th 1026, 1032.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated. Thus, absent those limited cases where a breach of a consensual contract term is not claimed or alleged, the only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery." (*Careau & Co. v. Sec. Pac. Bus. Credit, Inc*. (1990) 222 Cal. App. 3d 1371, 1395.)

As noted, Plaintiff provided no evidence of a contract between Plaintiff and Swapp or evidence of liability on the part of Swapp to Plaintiff. Plaintiff has not met its initial burden of proving each element of the cause of action. (Civ. Proc. Code § 437c(p)(1).) The Motion is **DENIED** as to this COA.

COA No. 5 – Unjust Enrichment

"[T]he elements for a claim of unjust enrichment: receipt of a benefit and unjust retention of the benefit at the expense of another." (*Lectrodryer v. SeoulBank* (2000) 77 Cal. App. 4th 723, 726.)

		The Motion simply parrots the elements of unjust enrichment without providing any arguments or evidence Swapp was personally unjustly enriched. Plaintiff has not met its initial burden of proving each element of the cause of action. (Civ. Proc. Code § 437c(p)(1).)The Motion is **DENIED** as to this COA. **COA No. 6 – Unfair Business Practices - B&P Code, § 17200** "The California Unfair Competition Law ["UCL"] ([Bus. & Prof. Code] § 17200 et seq.) defines '"unfair competition" as "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising."'" (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 609.) "In contrast to its limited remedies, the unfair competition law's scope is broad. The unfair competition law's scope is broad. Unlike the Unfair Practices Act, it does not proscribe specific practices. Rather, as relevant here, it defines "unfair competition" to include "any unlawful, unfair or fraudulent business act or practice." [Citation.] Its coverage is "sweeping, embracing ' "anything that can properly be called a business practice and that at the same time is forbidden by law." ' " [Citations.] It governs "anti-competitive business practices" as well as injuries to consumers, and has as a major purpose "the preservation of fair business competition." [Citations.] By proscribing "any unlawful" business practice, "section 17200 'borrows' violations of other laws and treats them as unlawful practices" that the unfair competition law makes independently actionable. [Citations.] [¶] However, the law does more than just borrow. The statutory language referring to "any unlawful, unfair or fraudulent" practice (italics added) makes clear that a practice may be deemed unfair even if not specifically proscribed by some other law. "Because Business and Professions Code section 17200 is written in the disjunctive, it establishes three varieties of unfair competition-acts or practices which are unlawful, or unfair, or fraudulent. 'In other words, a practice is prohibited as "unfair" or "deceptive" even if not " unlawful" and vice versa.'" (*Cel-Tech Commc'ns, Inc. v. Los Angeles Cellular Tel. Co.* (1999) 20 Cal. 4th 163, 180.) Again, Plaintiff produced no evidence Swapp personally took any specific actions related to the accusations in the Complaint. Plaintiff has not met its initial burden of proving each element of the cause of action. (Civ. Proc. Code § 437c(p)(1).) The Motion is **DENIED** as to this COA. Plaintiff to give notice.
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